



Instructions for Application for Action on an Approved Application or Petition

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form I-824
OMB No. 1615-0044
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What Is the Purpose of Form I-824?

Use Form I-824, Application for Action on an Approved Application or Petition, to request further action on a previously approved application or petition.

When Must I Use Form I-824?

You must use Form I-824 to request U.S. Citizenship and Immigration Services (USCIS) or U.S. Customs and Border Protection (CBP) action on a **previously approved** application or petition.

NOTE: USCIS or CBP will not approve Form I-824 if your previous approval is expired or was revoked.

You cannot use Form I-824 to verify the status of a pending application or petition. However, in accordance with 8 CFR section 103.9, this application may be filed with the original application or petition.

For applications previously approved by CBP

You must use Form I-824 to request that CBP issue a duplicate of your Form I-192, Application for Advance Permission to Enter as Non-Immigrant, or Form I-212, Application for Permission to Reapply for Admission into the United States After Deportation or Removal, approval notice if the original was lost, stolen, or mutilated.

You may also obtain a duplicate of an indefinite waiver that was issued prior to April 1, 1998. An indefinite waiver may be on Form I-185, Canadian Border Crossing Card (BCC) or on Form I-194 which shows the validity period as “indefinite.” You may obtain a duplicate of a previously issued indefinite waiver as long as your waiver was not revoked or voided.

When Should I Not File Form I-824?

Do not file Form I-824 with USCIS if you are requesting follow-to-join benefits for your spouse and/or children, and you are in one of the following classifications:

1. You were issued an immigrant visa at a U.S. Embassy or U.S. Consulate via consular processing and were admitted to the United States as a lawful permanent resident (LPR) on an immigrant visa;
2. You were granted refugee status after you were admitted to the United States;
3. You were granted status in the United States as an asylee; or
4. You have gained your LPR status through a T or U visa.

Do not file Form I-824 with USCIS, if you are requesting:

1. Further action on an application or petition that was denied, revoked, terminated or withdrawn;
2. A correction of an error on your previously approved application or petition;
3. A copy of the approved Form I-485, Application to Register Permanent Residence or Adjust Status, or Form N-400, Application for Naturalization, for your personal records;
4. A duplicate approval notice of an approved immigrant visa petition naming the spouse or children who are accompanying or following to join you;

5. USCIS to send information to the U.S. Department of State (DOS) regarding the approval of your expired nonimmigrant application or petition;
6. USCIS to send information to DOS regarding an employment-based application or petition if your employment for the original petitioner has ended;
7. USCIS to notify DOS of the approval of Form I-600A, Application for Advanced Processing of Orphan Petition, and/or Form I-600, Petition to Classify Orphan as an Immediate Relative, as well as the approval of Form I-800A, Application for Determination of Suitability to Adopt a Child from a Convention Country;
8. An action on an approved application that was filed with CBP; or
9. A replacement of the following documents: Employment Authorization Document (EAD), Form I-94 Arrival-Departure Record, Form I-551, Permanent Resident Card, or Form I-512/I-512L, travel document.

To request replacement of:

- A. An EAD, you must file Form I-765, Application for Employment Authorization;
- B. Form I-94 Arrival-Departure Record, you must file Form I-102, Application for Replacement/Initial Nonimmigrant Arrival-Departure Document;
- C. Form I-551, Permanent Resident Card, you must file Form I-90, Application to Replace Permanent Resident Card;
- D. Form I-512 or I-512L, travel document, you must file Form I-131, Application for Travel Documents, Parole Documents, and Arrival/Departure Records.

These forms can be found on the USCIS website at www.uscis.gov. Select the “FORMS” tab.

Do not file Form I-824 with CBP if you are requesting:

1. A duplicate approval notice that is expired or was revoked;
2. A correction of an error on your approval notice (visit www.cbp.gov for instructions on how to request a correction to your approval notice); or
3. Action on an approved application or petition that was filed with USCIS.

General Instructions

We provide free forms through the USCIS website. To view, print, or complete our forms, you should use the latest version of Adobe Reader, which you can download for free at <http://get.adobe.com/reader/>. If you do not have internet access, you may call the USCIS Contact Center and ask that we mail a form to you.

Signature. You (or your signing authority) must properly complete your application. USCIS will not accept a stamped or typewritten name in place of any signature on this application. If you are under 14 years of age, your parent or legal guardian may sign the application on your behalf. A legal guardian may also sign for a mentally incompetent person. If your application is not signed, or if the signature is not valid, we will reject your application. See 8 CFR 103.2(a)(7)(ii)(A). If USCIS accepts a request for adjudication and determines that it has a deficient signature, USCIS may reject or deny the request.

Validity of Signatures. USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

Filing Fee. See Form G-1055, available at www.uscis.gov/forms, for specific information about the fees applicable to this form.

For individuals filing this application with CBP: Please refer to CBP’s website at www.cbp.gov (go to the search box and type “Form I-824,” “I-824,” or “824”) for further instructions.

Evidence. When you file your application, you must submit all evidence and supporting documents listed in the **What Evidence Must You Submit** section of these Instructions.

Biometric Services Appointment. USCIS may require you to appear for an interview or provide biometrics (fingerprints, photograph, and/or signature) at any time to verify your identity, obtain additional information, and conduct background and security checks, including a check of criminal history records maintained by the Federal Bureau of Investigation (FBI), before making a decision on your application or petition. If we determine that a biometric services appointment is necessary, we will send you an appointment notice with the date, time, and location of your appointment. If you are currently overseas, your notice will instruct you to contact a U.S. Embassy, U.S. Consulate, or USCIS office outside the United States to schedule an appointment.

At your biometrics appointment, you must sign an oath reaffirming that:

1. You provided or authorized all information in the application;
2. You reviewed and understood all of the information contained in, and submitted with, your application; and
3. All of this information was complete, true, and correct at the time of filing.

If you do not attend your biometric services appointment, we may deny your application.

Copies. You should submit legible photocopies of requested documents unless the Instructions specifically instruct you to submit an original document. USCIS may request an original document at any time during our process. If we request an original document from you, we will return it to you after USCIS determines it no longer needs the original.

NOTE: If you submit original documents when they are not required or requested, **USCIS may destroy them after we receive them.**

Translations. If you submit a document with information in a foreign language, you must also submit a full English translation. The translator must sign a certification that the English language translation is complete and accurate, and that they are competent to translate from the foreign language into English. The certification must also include their signature, printed name, the signature date, and their contact information.

NOTE: You may file this application at any time while the previously approved application or petition is valid or pending.

NOTE: A separate Form I-824 must be filed for each action being requested.

USCIS Contact Center. For additional information on the application and Instructions about where to file, change of address, and other questions, visit the USCIS Contact Center at www.uscis.gov/contactcenter or call at **800-375-5283** (TTY **800-767-1833**). The USCIS Contact Center provides information in English and Spanish.

Disability Accommodations/Modifications. To request a disability accommodation/modification, follow the instructions on your appointment notice or at www.uscis.gov/accommodationsinfo.

How To Complete Form I-824

1. Type or print legibly in black ink.
2. If you need extra space to complete any item within this application, use the space provided in **Part 7. Additional Information** or attach a separate sheet of paper. Type or print your name and Alien Registration Number (A-Number) (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.

3. Answer all questions fully and accurately. If a question does not apply to you (for example, if you have never been married and the question asks “Provide the name of your current spouse”), type or print “N/A,” unless otherwise directed. If your answer to a question which requires a numeric response is zero or none (for example, “How many children do you have” or “How many times have you departed the United States”), type or print “None,” unless otherwise directed.

Specific Instructions

This application is divided into **Parts 1. - 7.** The following information will help you fill out the application.

If you are the applicant or the petitioner of the previously approved application or petition, and you are now requesting action in **Part 2., Item Number 1.a. or Item Number 1.b.** of this application, you must complete and sign this application.

If you are the principal applicant who filed Form I-485 and you are now requesting action in **Part 2., Item Number 1.c.** of this application, you must complete and sign this application.

Only the petitioner of the previously approved immigrant visa petition may file Form I-824, if action in **Part 2., Item Number 1.d. or Item Number 1.e.** is requested. You must provide the A-Number (in **Part 1., Item Number 6.** of the application) or the Receipt Number of the previously approved petition (in **Part 3., Item Number 1.b.** of this application), and complete and sign this application.

Part 1. Information About You (Person filing this Application)

Item Number 1. If you are the applicant or petitioner of the previously approved application or petition, select the appropriate box, and provide all the requested information.

NOTE: If the petitioner is a company or organization, provide the entity’s information in **Part 1.** of the application, if applicable.

Item Numbers 2.a. - 2.c. Your Full Legal Name. Provide your full legal family name (last name), given name (first name), and middle name. If you have two last names, include both names. If a company or organization is the petitioner on the previously approved petition, leave these spaces blank.

Item Number 3. Company or Organization Name (if any). If the petitioner on the previously approved petition is a company or organization, provide the entity’s complete name.

Item Number 4. Current/Recent Immigration Status. Provide your current or most recent immigration status. If you are a U.S. citizen, type or print “N/A.”

Item Number 5. Certificate of Naturalization or Citizenship Number (if any). If you are a naturalized U. S. citizen and select **Part 2., Item Number 1.a., Item Number 1.b., Item Number 1.d., or Item Number 1.e.**, provide your Certificate of Naturalization or Citizenship Number.

Item Number 6. Alien Registration Number (A-Number) (if any). Provide your A-Number. We use your A-Number to identify your immigration records. It begins with an “A” and can be found on correspondence you have received from the Department of Homeland Security (DHS) or USCIS. If you do not have an A-Number, type or print “N/A.”

Item Number 7. Date of Birth. Provide your date of birth in mm/dd/yyyy format (for example, May 1, 1979, should be typed or printed as 05/01/1979).

Item Number 8. Country of Birth. Provide the name of the country where you were born.

Item Number 9. Country of Citizenship or Nationality. Provide the name of the country where you are a citizen and/or national. This is not necessarily the country where you were born. If you do not have citizenship in any country, type or print “stateless” and provide an explanation in **Part 7. Additional Information**.

Item Number 10. IRS Tax Number (if any). If you are filing this application on behalf of a business or organization, provide the Internal Revenue Service (IRS) Tax Number of the business or organization.

Item Number 11. U. S. Social Security Number (if any). Provide your U.S. Social Security number. If you do not have a U.S. Social Security number, type or print “N/A.”

Item Number 12. USCIS Online Account Number (if any). You will only have a USCIS Online Account Number (OAN) if you previously filed a form that has a receipt number that begins with IOE. If you filed the form online, you can find your OAN in your account profile. If you mailed us the form, you can find your OAN at the top of the Account Access Notice we sent you. If you do not have a receipt number that begins with IOE, you do not have an OAN. The OAN is not the same as an A-Number.

Item Numbers 13.a. - 13.i. Mailing Address. Provide your mailing address, if different from your physical address.

Item Numbers 14.a. - 14.h. Physical Address. Provide your physical street address. This must include a street number and name or a rural route number. Do not provide a post office box (PO Box).

Part 2. Reason for Request

For individuals filing this application with CBP: Select **Item Number 1.a.** to request a duplicate of your Form I-192, Application for Advance Permission to Enter as Nonimmigrant, approval notice or your Form I-212, Application for Permission to Reapply for Admission into the United States After Deportation or Removal, approval notice if the original notice was lost, stolen, or mutilated, or a duplicate of an indefinite waiver was previously issued in conjunction with Form I-185, Nonresident Alien Canadian Border Crossing Card (BCC).

NOTE: If your Form I-192 approval notice expires in less than six months, please consider submitting a new Form I-192.

For individuals filing this application with USCIS. The reasons for requesting further action are listed below. Select the box that applies to your particular request (Select **only one** box).

1. If you are requesting a duplicate approval notice of the application or petition, select **Item Number 1.a.**

NOTE: The duplicate approval notice contains only the information regarding the approval as listed on the original Form I-797, Notice of Action. The duplicate approval notice does not include a copy of the previously approved application or petition; it only includes Form I-797.

NOTE: A replacement Employment Authorization Document (EAD) card, Permanent Resident Card, travel document or any other USCIS authorization document will not accompany the duplicate approval notice.

2. If you are requesting USCIS to notify a new U.S. Consulate (different from that originally requested) through the U.S. Department of State’s National Visa Center (NVC) or Kentucky Consular Center (KCC) concerning the approval of a nonimmigrant visa petition or to notify a new Port-of-Entry (different from that originally requested) concerning the approval of a waiver application, select **Item Number 1.b.** If approved, USCIS will send information regarding the approval of your nonimmigrant visa petition to a new U.S. Consulate through the NVC or the KCC, or the approval of your waiver application to a new Port-of-Entry different from that originally requested.
3. If you are requesting USCIS to notify a U.S. Consulate through the NVC that your status was adjusted to that of a lawful permanent resident based on an approved Form I-485, select **Item Number 1.c.** This will permit your spouse and/or children to apply for an immigrant visa and follow-to-join you in the United States.

This notification is available if:

- A. An Immigration Judge or USCIS approved your lawful permanent resident status; and

B. You wish to have your spouse or children follow-to-join you in the U.S. based on a previously approved Form I-485 that was based upon:

- (1) A family preference visa petition (Form I-130);
- (2) An employment-based visa petition (Form I-140);
- (3) A religious worker or VAWA (Form I-360) petition; or
- (4) A diversity case number.

This notification is not available if:

A. You were issued an immigrant visa at a U.S. Embassy or U.S. Consulate and were admitted to the United States as a lawful permanent resident. You may contact the NVC for information on how to request follow-to-join benefits for your dependents. You may direct your inquiry to our Public Inquiry Form (<http://travel.state.gov/content/visas/english/contact/ask-nvc.html>) or by writing to the National Visa Center, at:

**National Visa Center
ATTN: WC
32 Rochester Avenue
Portsmouth, NH 03801-2909**

B. You were admitted to the United States as a refugee or were granted status in the United States as an asylee. Please refer to Form I-730, Refugee/Asylee Relative Petitions, for specific information on follow-to-join benefits for your spouse or unmarried children under 21 years of age.

NOTE: The approval of Form I-824 does not guarantee a visa will be granted by the U.S. Consulate overseas.

4. If you are requesting USCIS to send your approved immigrant visa petition to the NVC, select **Item Number 1.d.**

NOTE: If the beneficiary has already gained lawful permanent resident status through the approval of Form I-485, this option is no longer available.

5. If you are requesting USCIS to notify DOS that you have become a U.S. citizen through naturalization, select **Item Number 1.e.**

NOTE: If you want to notify DOS that you have become a U.S. citizen through naturalization, you may do so by attaching your naturalization certificate to the Public Inquiry Form, <http://travel.state.gov/content/visas/english/contact/ask-nvc.html>, or sending your request along with a copy of your naturalization certificate directly to the National Visa Center at:

**National Visa Center
ATTN: WC
31 Rochester Avenue
Portsmouth, NH 03801**

Part 3. Other Information

Provide the information about the previously approved application or petition in **Item Numbers 1.a. - 1.d.**

If you select **Part 2., Item Number 1.a., Item Number 1.b., Item Number 1.d., or Item Number 1.e.**, provide the information in **Part 3., Item Numbers 2.a. - 4.i.**, if applicable.

If you select **Part 2., Item Number 1.c.**, provide the requested information in **Part 3., Item Numbers 5.a. - 34.**, for each family member for whom you are requesting follow-to-join benefits.

Part 4. Applicant's Contact Information, Certification, and Signature

Item Numbers 1. - 4. You must sign and date your application and, if applicable, provide your daytime telephone number, mobile telephone number, and email address. The signature of the parent or legal guardian, if applicable, is accepted. A stamped or typewritten name in place of a signature is not acceptable.

Part 5. Interpreter's Contact Information, Certification, and Signature

Item Numbers 1. - 6. If you used anyone as an interpreter to read the Instructions and questions on this application to you in a language in which you are fluent, the interpreter must fill out this section and sign and date the application.

Part 6. Contact Information, Declaration, and Signature of the Person Preparing this Application, if Other Than the Applicant

Item Numbers 1. - 6. The person who completed your application, if other than the applicant must sign this section. If the same individual acted as your interpreter and your preparer, then that person should complete both **Part 5.** and **Part 6.** A stamp or typewritten name in place of a signature is not acceptable.

Part 7. Additional Information

Item Numbers 1.a - 7.d. If you need extra space to provide any additional information within this application, use the space provided in **Part 7. Additional Information.** If you need more space than what is provided in **Part 7.**, you may make copies of **Part 7.** to complete and file with your application, or attach a separate sheet of paper. Type or print your name and A-Number (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.

We recommend that you print or save a copy of your completed application to review in the future and for your records.

What Evidence Must You Submit?

You must submit all evidence requested in these Instructions with your application. If you fail to submit required evidence, USCIS may reject or deny your application for failure to submit requested evidence or supporting documents in accordance with 8 CFR 103.2(b)(1) and these Instructions.

Attach copies, showing the front and back of the following documents, if applicable:

1. If you select **Part 2., Item Numbers 1.a., 1.b., 1.c., or 1.d.**, provide a copy of Form I-797 for the previously approved application or petition; or
2. If you select **Part 2., Item Number 1.e.**, provide a copy of Form N-550, Certificate of Naturalization.

Where To File?

For applicants filing with USCIS:

Please see our website at www.uscis.gov/I-824 or call our USCIS Contact Center at **1-800-375-5283** for the most current information about where to file this application. For TTY (deaf or hard of hearing) call: **1-800-767-1833**.

For applicants filing with CBP:

Please file this application request at the CBP-designated Port-of-Entry listed on www.cbp.gov or mail to U.S. Customs and Border Protection, Admissibility Review Office at the address specified on www.cbp.gov.

Address Change

If you filed this application with USCIS:

An applicant who is not a U.S. citizen must notify USCIS of his or her new address within 10 days of moving from his or her previous residence. For information on filing a change of address go to the USCIS website at www.uscis.gov/addresschange or contact the USCIS Contact Center at **1-800-375-5283**. For TTY (deaf or hard of hearing) call: **1-800-767-1833**.

NOTE: Do not submit a change of address request to USCIS Lockbox facilities because the Lockbox does not process change of address requests.

If your application is pending with CBP:

You may change your address by writing via regular mail or via email to the Admissibility Review Office/U.S. Customs and Border Protection.

Mailing address: Please refer to www.cbp.gov for the most updated mailing address of the Admissibility Review Office.

Email address: aroinquirywaiver@cbp.dhs.gov.

Do not send a Change of Address Request to USCIS or a USCIS Lockbox facility.

Processing Information

Initial Processing. Once USCIS accepts your application, we will check it for completeness. If you do not properly complete this application, you will not establish a basis for your eligibility and we may reject or deny your application.

Requests for More Information. USCIS may request that you provide more information or evidence to support your application. We may also request that you provide the originals of any copies you submit. If we request an original document from you, we will return it to you after USCIS determines it is no longer needed.

Requests for Interview. We may request that you appear at a USCIS office for an interview based on your application. During your interview, USCIS may require you to provide your biometrics to verify your identity and/or update background and security checks.

Decision. The decision on Form I-824 involves a determination of whether you have established eligibility for the immigration benefit you are seeking. USCIS will notify you of our decision in writing.

USCIS Forms and Information

To ensure you are using the latest version of this application, visit www.uscis.gov.

Penalties

If you knowingly and willfully falsify or conceal a material fact or submit a false document with your Form I-824, we will deny your Form I-824 and may deny any other immigration benefit. In addition, you will face severe penalties provided by law and may be subject to criminal prosecution.

DHS Privacy Notice

AUTHORITIES: The information requested on this application, and the associated evidence, is collected under 8 CFR 103.5b.

PURPOSE: The primary purpose for providing the requested information on this application is to request further action on a previously approved application or petition. DHS uses the information you provide to grant or deny the immigration benefit you are seeking.

DISCLOSURE: The information you provide is voluntary. However, failure to provide the requested information, including your Social Security number (if applicable), and any requested evidence, may delay a final decision or result in the denial of your application..

ROUTINE USES: The Department of Homeland Security (DHS) may share the information you provide on this application, and any additional requested evidence, with other Federal, state, local, and foreign government agencies and authorized organizations. DHS follows approved routine uses described in the associated published system of records notices [DHS/USCIS/ICE/CBP-001 Alien File, Index, and National File Tracking System of Records, DHS/USCIS-007 Benefits Information System, DHS/USCIS-018 Immigration Biometric and Background Check, DHS/CBP-006 Automated Targeting System, and DHS/CBP-011 U.S. Customs and Border Protection TECS] and the published privacy impact assessments [DHS/USCIS/PIA-016(a) Computer Linked Application Information Management System and Associated Systems, DHS/CBP/PIA-009 TECS System: CBP Primary and Secondary Processing, and DHS/CBP/PIA-006(b) Automated Targeting System], which you can find at www.dhs.gov/privacy. DHS may also share this information, as appropriate, for law enforcement purposes or in the interest of national security.

Paperwork Reduction Act

An agency may not conduct or sponsor an information collection, and a person is not required to respond to a collection of information, unless it displays a currently valid Office of Management and Budget (OMB) control number. The public reporting burden for this collection of information is estimated at 0.147 hours per response, including the time for reviewing instructions, gathering the required documentation and information, completing the application, preparing statements, attaching necessary documentation, and submitting the application. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to: U.S. Citizenship and Immigration Services, Office of Policy and Strategy, Regulatory Coordination Division, 5900 Capital Gateway Drive, Mail Stop #2140; OMB No. 1615-0044. **Do not mail your completed Form I-824 to this address.**